



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 07/24/2026 - 09:00 AM

07/15/2026

3:18 PM

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Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

17-PRO-00952	Estate of DANIEL W. BODMANN, SR	HEATHER HOLDEN-BODMANN'S NOTICE OF MOTION AND MOTION TO: (1) STRIKE THE MEMORANDUM OF COSTS OF THOMAS KROUSE; AND (2) DIRECT THOMAS KROUSE TO PAY COSTS HEATHER-HOLDEN BODMANN'S APPELLATE COSTS, AS REFLECTED IN HER MEMORANDUM OF COSTS ON APPEAL, TO HE
Line 3	Petitioner: BODMAN, ANDREA S. (Pro Se) Petitioner: BODMANN, DANIEL, JR Petitioner: Holden-Bodmann, Heather Petitioner: KROUSE, THOMAS E. (Pro Se) Petitioner: Warner , Beth D. (Pro Se) Decedent: BODMANN, DANIEL W., SR Interested Party: HOLDEN-BODMANN, HEATHER (HANSEN, CRAIG A. YEAGER, PHILIP EUGENE) Objector: HOLDEN-BODMANN, HEATHER (HANSEN, CRAIG A. YEAGER, PHILIP EUGENE) Mediator: CHOI, JOHN MIN J.	Motion to Strike

Tentative Ruling:

APPEARANCE OPTIONAL

The probate court retains discretion to decide not only **whether** costs should be paid, but also, if they are awarded, **who will pay and who will recover** them. (Prob. Code, § 1002.). Thomas Krause filed his memorandum of costs on 12/28/2021. Any decision on that filing has been in abeyance for 5 ½ years while this matter has wound its way through the trial court and the California Appellate Court. Heather Holden-Bodmann then filed her motion to strike costs and request to order Thomas Krause to pay her appellate costs, which was awarded by the Fourth District Court of Appeal. Thomas Krause has not replied to that motion. In exercising its discretion, the Court GRANTS Holden-Bodmann's unopposed Motion to: (1) Strike the Memorandum of Costs of Thomas Krouse; and (2) Direct Thomas Krouse to Pay Costs Heather Holden-Bodmann's Appellate Costs, as Reflected in her Memorandum of Costs on Appeal, to Heather Holden-Bodmann Pursuant to CRC 8.278(a)(4). Thomas Krause is not entitled to his costs as a matter of right, and the years' worth of prolonged unsuccessful litigation on his part in no way supports an exercise of discretion in his favor. Thomas Krause shall make full payment to Heather Holden-



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Bodmann in the amount of \$1,898.40 within 30 days of service of this court's written order. A copy of this order will also be filed in 17-PRO-00952-C. Formal order required.

17-PRO-01269	SCOTT TRUST AGREEMENT DATED JANUARY 13, 2010	PETITION FOR APPROVAL OF THIRD, FOURTH AND FIFTH ACCOUNT AND REPORT OF TRUSTEE, AND FOR INSTRUCTIONS WITH BENEFICIARIES CONSENT
Line 4	Petitioner: LASSAHN, T. ANNE (VALE, ROBERT D.) Objector: Johnson, Cindy (Pro Se)	Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL (Zoom allowed)

The petition is rife with confusing errors as to which of the three accounts is being described in paragraphs 16 through 18. Petitioner has repeatedly mislabeled which account covers which time frame; moreover, the petition identifies the Fourth account in every period of accounting offered.

For example, paragraph 16 begins with "A true and correct copy of the Third, Fourth and Fifth Account And Report Of Trustee for the period July 1, 2021 through December 31, 2022." Are all three accountings for that 18-month period?